

21. 9:00 AM CASE NUMBER: MSC21-00637

CASE NAME: OSCAR CORONA VS. JOSHUA WARD

***HEARING ON MOTION IN RE: COMPLIANCE HEARING SET BY THE COURTROOM (CONTINUED FROM 02.05.26)**

FILED BY:

TENTATIVE RULING:

The Court has reviewed the Status Report filed by the Plaintiff in this case on February 3, 2026 and the minute order prepared by Judge Weil on February 5, 2026. Lead counsel are ordered to appear via Zoom to provide the Court with a status report on the final distribution of funds in this matter.

Discovery Law & Motion

22. 9:01 AM CASE NUMBER: C23-01493

CASE NAME: KWAMINA DAVIS VS. DIAMOND RIDGE POST ACUTE, LLC DBA DIAMOND RIDGE HEALTH CARE CENTER

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES OF PLAINTIFF KWAMINA DAVIS TO SPECIAL INTERROGATORIES, SET ONE**

FILED BY: DIAMOND RIDGE POST ACUTE, LLC DBA DIAMOND RIDGE HEALTH CARE CENTER

TENTATIVE RULING:

Summary

This tentative ruling applies to Lines 22, 23 and 24. The following discovery motions are scheduled to be heard on by the Court on May 27, 2026 at 9:00 a.m. in Department 16:

1. Defendant Diamond Ridge Post Acute LLC's ("Defendant") Motion to Compel Further Responses of Plaintiff Kwamina Davis ("Kwamina") to Special Interrogatories, Set One and Request for Sanctions in the amount of \$869 filed on November 18, 2025;
2. Defendant's Motion to Compel Further Responses of Kwamina to Request for Production, Set One and Request for Sanctions in the amount of \$760 filed on November 18, 2025;
3. Defendant's Motion to Compel Further Responses of Plaintiff Robert Davis ("Robert") to Form Interrogatories, Set One and for Sanctions in the amount of \$2,200 filed on November 18, 2025

The Court also has scheduled hearings on the following discovery motions in Department 16 on September 23, 2026 at 9:00 a.m.:

4. Defendant's Motion to Compel Further Responses of Robert to Special Interrogatories, Set One and for sanctions.
5. Defendant's Motion to Compel Further Responses of Rober to Request for Production, Set One and for Sanctions;
6. Defendant's Motion to Compel Further Responses of Kwamina to Form Interrogatories, Set

One, and for Sanctions;

The Court **vacates** all six (6) of the foregoing hearings on these discovery motions, and any other subsequently filed discovery motion, and appoints, *sua sponte*, a Discovery Referee to hear all of the foregoing discovery motions, and any and all discovery motions, filed by the Parties in this litigation as set forth in this tentative ruling. No appearance is required on May 27, 2026, unless this tentative ruling is contested.

Background

Plaintiffs Kwamina and Robert Davis have filed suit against Defendant Diamond Ridge Post Acute, LLC (dba Diamond Ridge Health Care Center), asserting claims for elder abuse/neglect, professional negligence, wrongful death, negligent infliction of emotional distress, and violation of patients' rights. The plaintiffs bring these claims both individually and as successors-in-interest to Pauline Davis, the deceased person who was under the Defendant's care.

Pauline Davis was admitted to the defendant's facility on or around January 20, 2017, and remained there until August 29, 2022. The plaintiffs allege that the Defendant was aware that Davis required substantial assistance with eating, drinking, toileting, hygiene, and mobility, as well as heightened monitoring for skin breakdown. Despite this knowledge, the defendant allegedly failed to provide adequate care and supervision, resulting in Davis suffering malnutrition, weight loss, bedsores, and ultimately death.

Defendant served discovery to both Plaintiffs in the form of Special and Form Interrogatories, and a Request for Production of Documents. Plaintiffs responded. There is a dispute between the Parties regarding the adequacy of Plaintiff's responses which resulted in Defendant's filing of these six discovery motions.

Analyses

This Court maintains a judicial philosophy that discovery motions are overused and should be discouraged unless there is no compliance with the discovery statutes. Before making a motion to compel, Counsel are advised to consider carefully whether doing so is truly worthwhile. "Motions to compel should be considered a last resort when trying to prepare a case for trial." California Civil Discovery Practice (4th ed Cal CEB) §15.32.C. Additionally, "trial courts generally have little tolerance for discovery motions because of a perception that the parties ought to be able to resolve many, if not most, discovery disputes without judicial intervention. But because legitimate discovery disputes do exist, motions to compel are sometimes justified.

If a motion to compel becomes necessary, counsel should understand that busy trial courts will not often be able to spend much time analyzing complex discovery disputes." California Civil Discovery Practice (4th ed Cal CEB) §15.38.6. Indeed, in context, this Court's civil division manages 25,000 active cases. Department 16, alone, oversees 2,700 of those cases, including the complex, class action, construction defect, PAGA, CEQA and statewide coordinated cases. Here, Counsel appeared to have met and conferred but are unable to resolve the discovery disputes before Plaintiff filed its motions.

On the motion of a party, stipulation of the parties, or *sua sponte*, a court may appoint a discovery referee to manage and rule on the discovery aspects of a case. See Cal. Code of Civ. Proc. §§639(a)(5), (b)–(d); Cal Rules of Ct 3.920–3.932, *Lu v Superior Court* (1997) 55 Cal.App.4th 1264 (trial court has authority to appoint discovery referee before discovery dispute arises to assist attorneys in creating efficient discovery plan).

The Court finds, in its discretion, that such an appointment of a Discovery Referee is warranted under the circumstances of this case. The Court finds that the multiple discovery motions, the existing disputes raised by the pending discovery motions and nature of underlying legal issues, require discovery reference. Cal. Code of Civ. Proc. Section 639(a)(5) states: “When the court in any pending action determines that it is necessary for the court to appoint a referee to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation thereon.”

The Court finds, here, that a discovery referee is necessary to hear and determine all disputes relevant to discovery. The Court makes this finding on the grounds that there are five (6) pending discovery motions on calendar in the matter, scheduled for May 27, 2026 and September 23, 2026. These motions and opposition filed to date consist of over one thousand three hundred thirty-six (1336) pages. The Court finds that Counsel are unable to effectively meet and confer to arrive an informal resolution of the discovery disputes. The Parties will benefit from having a discovery referee address these discovery issues in an efficient and timely manner. A discovery referee will be able to devote necessary time, which the Court does not have, to spend in the resolution of these disputes.

After considering the moving and opposition papers submitted by Counsel, and analyzing the applicable statutory and decisional authorities, the Court finds good cause to make the following findings, orders and ruling.

Ruling

Discovery Referee is appointed. The Court grants its motion, *sua sponte*, for the appointment of a Discovery Referee pursuant to Cal. Code of Civ. Proc. §§ 639(a)(5) and 640.

1. The Discovery Referee shall hear all disputes relevant to the discovery in the action and report findings and make a recommendation thereon. Specifically, the Discovery Referee shall hear the Discovery Motions scheduled for hearing on May 27, 2026, and September 23, 2026, and all subsequently filed discovery motions. The hearing on the foregoing discovery motions are vacated from Department 16 and are referred for further hearing to the Discovery Referee.

2. By no later than June 5, 2026, the Parties are ordered to meet and confer pursuant to Cal. Code of Civ. Proc. § 640(a) or (b) and shall e-file a stipulation and proposed order listing the proposed discovery referee to the Court along with the proposed referee’s curriculum vitae and fee schedule. If the Parties are unable to jointly agree to a proposed Discovery Referee by June 5, 2026, the Parties each shall submit the name of one proposed Discovery Referee and fee schedule along with his/her/their *curriculum vitae* to the Court by letter, e-mailed to dept16@contracosta.courts.ca.gov

by Wednesday, June 10, 2026. The Court will select one of the proposed referees by unreported minute order. The Discovery Referee will be requested to sign the Judicial Council ADR-110 form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 form.

3. No party has established an economic inability to pay a *pro rata* share of the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be split 50/50 between the parties. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to all discovery motions referred to the Discovery Referee.

4. Defendants' Counsel is directed to prepare and e-file a proposed order in compliance with all applicable law for the appointment of the referee, including Code Civ. Proc. § 639 that conforms to this ruling, approved as to form by Defendant's Counsel, attaching this tentative ruling no later than five (5) days after the hearing on this matter. Counsel are ordered to provide copies of all discovery motions and responses to the Discovery Referee within five (5) days of appointment, along with a copy of this order.

5. The Clerk of the Court shall vacate all of Discovery Motions calendared for May 27, 2026 and September 23, 2026. All future discovery disputes shall be referred to the Discovery Referee until further orders of the Court.

6. The Parties are ordered to meet and confer and take all necessary steps to implement this order forthwith.

23. 9:01 AM CASE NUMBER: C23-01493
CASE NAME: KWAMINA DAVIS VS. DIAMOND RIDGE POST ACUTE, LLC DBA DIAMOND RIDGE HEALTH CARE CENTER
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES OF PLAINTIFF KWAMINA DAVIS TO REQUEST FOR PRODUCTION, SET ONE**
FILED BY: DIAMOND RIDGE POST ACUTE, LLC DBA DIAMOND RIDGE HEALTH CARE CENTER
TENTATIVE RULING:
See Line 22

24. 9:01 AM CASE NUMBER: C23-01493
CASE NAME: KWAMINA DAVIS VS. DIAMOND RIDGE POST ACUTE, LLC DBA DIAMOND RIDGE HEALTH CARE CENTER
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES OF PLAINTIFF ROBERT DAVIS TO FORM INTERROGATORIES, SET ONE**
FILED BY: DIAMOND RIDGE POST ACUTE, LLC DBA DIAMOND RIDGE HEALTH CARE CENTER
TENTATIVE RULING:
See Line 22.